

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN AUSTRALIA

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Australia's most famous environmental win didn't come from a minister or a boardroom. It came from a wild river and a blockade. In the summer of 1982–83, the Tasmanian Wilderness Society, led by a young doctor named Bob Brown, camped out at Warners Landing on the Gordon River to stop the state's Hydro-Electric Commission from damming the Franklin, one of the last wild rivers left on the continent. Over that summer about **1,217 people were arrested** for standing in the way. "No Dams" became a national slogan, the Franklin became an issue in the 1983 federal election, and a newly elected federal government stepped in. When Tasmania refused to stop, Canberra passed a law and the fight went to the High Court. On 1 July 1983, in the **Tasmanian Dam Case**, the Court held four to three that the Commonwealth could use its power over "external affairs" to protect a World Heritage area — and the dam was dead. A river got saved because ordinary people put their bodies in the way, built a movement that reached the whole country, and found the one lever a determined state government couldn't override.

Remember how that actually worked, because it's the pattern that wins here. The law was the *last* step, not the first. The blockade came first. The election came first. The national movement came first. The court only mattered because a long, disciplined, visible campaign had already made the Franklin impossible for a federal government to ignore. In Australia, a project a *state* wants can sometimes be stopped by the *Commonwealth* when a matter of national environmental significance is at stake — but only when the public pressure is there to make it happen.

The other thing the Franklin shows is the shape of the Australian system, which you have to understand to fight in it: **power is split**. Most projects — mines, dams, logging, land clearing, big developments — are approved by a **state or territory**, which usually also *wants* the project and its jobs and royalties. Sitting above that is a **federal** law that kicks in only when a project threatens something of national significance. And running through all of it, growing stronger every year, are the **rights of Aboriginal and Torres Strait Islander peoples**. Your job is to work out which of those levers your fight can reach.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's really a chain of approvals, and a chain breaks at its weakest link. A major project usually needs **state** planning and environmental approval; if it threatens something nationally significant it *also* needs **federal** approval under the EPBC Act; it may need to deal with **native title** and Aboriginal heritage; and it always needs public acceptance and money. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If your project threatens something of national significance — a World Heritage area, a Ramsar wetland, a nationally threatened species, the Reef — you have the federal lever**, and open access to the courts to enforce it. That's the Franklin lever, and it's Australia's most distinctive.

- **If it's a "purely state" matter and the state wants it built**, the federal door may not open, and you'll fight on state ground — planning law, the state courts, the movement, the market, and (where they apply) Aboriginal rights. Harder, but far from hopeless.
- **If it affects Aboriginal land, heritage, or native title**, the most powerful lever is often the one the law gives Traditional Owners — and a non-Indigenous community wins by *supporting* that leadership, not talking over it.

Read the whole guide once before you move. Two habits run through all of it: **use the rights the law gives you** — the comment windows, the open standing, the heritage protections — and **run every front at once**: the documents, the approvals fight, the courts, the movement, the market, the media. That's exactly how the Franklin was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

For most projects the **state or territory government** is the main decision-maker: it runs the environmental assessment, grants the planning approval and the mining or water licences, and — this matters — it usually backs the project. Sitting over the top, and only for projects that significantly affect one of **nine matters of national environmental significance**, is the federal **Environment Minister** under the **EPBC Act** (the Environment Protection and Biodiversity Conservation Act 1999). Those nine national triggers are: World Heritage areas, National Heritage places, Ramsar wetlands, nationally threatened species and ecological communities, migratory species, Commonwealth marine areas, the Great Barrier Reef Marine Park, nuclear actions, and water resources affected by coal-seam gas and large coal mining. If your project hits one of those, a whole federal front opens up.

How a Project Moves — and Where You Jump In

The federal trigger — and a 10-day window you cannot miss. If a project might significantly affect one of the nine national matters, it has to be **referred** to the federal Environment Minister. The referral is posted on the **EPBC Act Public Portal** (the department's website), and **anyone can comment during a 10-business-day window — with no extensions**. *Your opening*: this is the single most time-critical door in the federal system. Comment at the "controlled action" stage (arguing the project *does* need full assessment), and again later if an environmental impact statement is put out for comment. The **Environmental Defenders Office** publishes a template for exactly this.

State assessment and its comment period. The state runs its own environmental assessment with its own public-exhibition/comment period. *Your opening*: the honesty of the assessment, and whether the public was genuinely consulted.

The approvals. State planning approval, mining or water licences, and (if triggered) federal approval. *Your opening*: an approval resting on a flawed assessment can be challenged in court.

Construction and operation. *Your opening*: breaches of approval conditions are leverage.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company and stock-exchange records show the players and their exposure. **What it still needs** — the approval not yet granted or under challenge, the

financing not closed: whatever's missing is the soft spot. **Who's paying and insuring it** — many big projects, coal above all, depend on banks and insurers with climate commitments, and a financier or insurer walking away can be the weakest link (the Stop Adani campaign made this a national tactic).

Who's Supposed to Be Watching

Each is an ally or an arena. The **federal Environment Minister and department** run the EPBC system and can be pressed, publicly, to enforce it. **State courts and tribunals** review planning and environmental decisions — some, like the **Land and Environment Court of NSW**, are specialist courts where objectors can appeal on the merits and on the law (Victoria's VCAT and other states have their own). The **Federal Court** hears challenges to federal decisions. State **auditors-general and ombudsmen** take complaints about process and public money. And Australia's **deep environmental movement**, its public-interest lawyers, and a free press are the forces that reach furthest — because the Franklin was won in the country's mind before it was won in court.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether a national trigger is in play, whether the assessment is genuinely flawed, whether Aboriginal rights are engaged, and how set the state is on the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Comment on the EPBC referral / state assessment	15–35%	during review	low	On record; assessment or conditions
Judicial review of a federal/state approval	25–50%	1–3 yr	mod	Approval quashed; sent back
Merits appeal (where available, e.g. NSW L&EC)	30–55%	6 mo–2 yr	low–mod	Decision remade; project refused or conditioned
Aboriginal heritage / native title process	25–50%	varies	low–mod	Protection, negotiation, or delay
Financier / insurer pressure	20–45%	months–yr	low	Money or cover withdrawn
Mass movement + market + media	30–55%	1–4 yr	low–mod	Political cost; project reconsidered
Everything together (national trigger, public watching)	45–65%	1–4 yr	mod	Stopped, quashed, delayed, changed
Everything together (state-backed, no federal trigger)	20–45%	1–4 yr	mod	Delayed, conditioned, exposed

The tools that move the needle most are **the federal trigger and the courts** (where a national matter is engaged), **Aboriginal rights** (where they're affected), and **the movement, the market, and public opinion** (always). The Franklin shows the ceiling — a state's dam killed outright — and the honest floor is that a state-backed, purely-state project with a clean process is a hard, grinding fight where a win often looks like delay, conditions, and exposure.

On cost: commenting, documenting and organising are cheap, and the Environmental Defenders Office runs public-interest cases and gives free legal help. Section 487 of the EPBC Act gives you open standing — a group that's been active in environmental protection for two years can go to the Federal Court without proving personal harm — so the courthouse door is genuinely open.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this approval, this trigger, this flaw — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers and insurers. Foreign money and climate-committed financiers open extra fronts.
- 2. Where is it, and what does it touch?** Get the boundaries and lay them over what's protected — a World Heritage or National Heritage place, a Ramsar wetland, threatened-species habitat, the Reef, Aboriginal heritage or a native-title area. **A national trigger is the thing that opens the federal door**, so this map is your most important document.
- 3. What stage is it at, and what's the next deadline?** Has it been referred to the federal minister — is that 10-day window open, or coming? Is the state assessment on exhibition? These openings are strictly time-bound, and the federal comment window is brutally short.
- 4. What does it still need that it lacks?** A federal or state approval not yet granted, financing not closed, insurance not secured. The missing piece is the soft spot.
- 5. Who else is affected, and who already stands with you?** Neighbours, farmers, the Traditional Owners, local groups, the EDO, the national movement, Lock the Gate. You're joining a movement that already exists.

What this looks like in real life. A community learns a coal mine is planned that will draw down the groundwater their farms depend on and clear habitat for a threatened species. The five questions yield: a named mining company, foreign-financed, behind it; a site that hits a national trigger (threatened species, and the coal/water trigger); a state assessment about to go on exhibition and a federal referral due; a project still needing both approvals and its financing; and a ready coalition of farmers, the EDO, Lock the Gate, and the national climate movement. That's the shape of a winnable fight — pressure on every front at once.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the referral and its supporting reports (on the EPBC Public Portal), the state environmental assessment, the approval conditions, the water and mining licences. Freedom-of-information laws (federal and state) force out what isn't public. Then read the assessment hard, because flaws hide in the detail: an understated impact, an ignored alternative, and — a known EPBC weakness — **cumulative effects the assessment simply doesn't consider**. A defective assessment is where approvals get quashed.

Layer two: the ground truth. Dated, located photographs and video of the site, the water, the bush, the species — baseline images before any damage most of all — and the testimony of affected neighbours and, where they choose to share it, Traditional Owners.

Layer three: the map of triggers and protections. Lay the project over every national trigger, protected area, heritage place, and native-title or heritage area it touches, so each legal lever is visible. Walking in with the assessment, the conditions, and that map is what makes the department, the courts, and the press take you seriously.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EPBC referral and documents, the state assessment, the approvals and conditions** — from the EPBC Act Public Portal and the state agency; force out the rest with FOI (8A).
- **Mining, water and land-use licences and planning approvals** — from the state department and the local council.
- **Ownership, financing and insurance** — company and stock-exchange records, and lender/insurer information.
- **The triggers-and-protections map** — the nine national matters, protected areas, heritage places, and native-title/heritage areas, laid over the site.
- **Dated site evidence and named testimony** — photographs marked with date and place, and neighbours' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Australia has a deep tradition of exactly this, from the Franklin to Lock the Gate's "gasfield free" communities. Build your coalition in four moves.

Start with a tight core. The families most affected, the people who know the land and water, a few tireless organisers, and respected local figures whose word carries.

Widen the circle. Pull in the surrounding district, the farmers, the local groups, the next town. Hold meetings where people can see the evidence — the map of the mine over the aquifer and the habitat — so the community speaks with one voice. Lock the Gate built a movement across rural Australia by getting whole districts to declare themselves gasfield-free; breadth is protection.

Work with Traditional Owners on their terms. If the project affects Aboriginal land, heritage, or native title, the most powerful rights in the fight belong to Traditional Owners. Build the campaign around **supporting** that leadership — never speaking for it or treating it as an add-on.

Bring in the allies and experts — early. This is a real advantage, so use it. The **Environmental Defenders Office** (edo.org.au) gives free environmental-law advice and runs public-interest cases across the country. National groups, scientists, and public-interest lawyers are within reach. Bring them in as partners and hand them your documents.

Build to last. These fights run for years. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial and emotional toll — and go in knowing some states have passed tough anti-protest laws, so get legal advice before any direct action.

STEP 4: LEGAL CHALLENGES & ABORIGINAL RIGHTS

Law is one of Australia's sharpest levers, because the courts genuinely enforce the limits on power — and because the door to them is unusually open. Here are the routes, straight.

The Federal Trigger and Open Standing

The EPBC Act is the Franklin lever. If a project is likely to significantly affect one of the nine national matters, it must be referred and assessed federally, and the minister can refuse or condition a project a state wants. Two things make this powerful for communities. First, **you comment on the referral** (in that 10-business-day window) to push for full assessment. Second, **section 487 gives you open standing**: an individual or group that's been engaged in environmental protection or conservation for the past two years can take a federal decision to the **Federal Court** for judicial review *without* proving personal harm — a genuinely open courthouse door that doesn't exist in most countries. Use it to challenge a decision that ignored the law or the evidence.

Judicial and Merits Review

There are two different court routes, and the difference matters. **Judicial review** (federal or state) asks whether the decision-maker followed the law — and a flawed process or ignored mandatory consideration can get an approval **quashed and sent back**. **Merits review**, available in some states before bodies like the **Land and Environment Court of NSW** (or VCAT in Victoria), lets a court or tribunal **remake the decision itself** — a far stronger remedy where it's available, because the objector isn't just arguing process, they're re-arguing whether the project should go ahead at all. Find out which your state offers, and for which decisions.

Aboriginal Heritage and Native Title

Where a project affects Aboriginal heritage or land, there are distinct and powerful tools. State heritage laws protect Aboriginal sites — but the **Juukan Gorge** disaster showed their limits: a mining company legally destroyed 46,000-year-old rock shelters under a Western Australian state consent. The federal backstop is the **Aboriginal and Torres Strait Islander Heritage Protection Act (ATSHP Act)**, under which the federal minister can make a **declaration** to protect a significant Aboriginal area or object from a threat — a route worth knowing when state law has failed. And **native title** (under the Native Title Act) gives Traditional Owners a **"right to negotiate"** over mining on their land — not a veto, but real leverage that can shape, delay, or extract protections from a project. These rights belong to Traditional Owners; a community supports them, and never presumes to wield them.

The Honest Limits

Straight talk: the EPBC Act barely considers cumulative impacts and approves most projects; native title is a right to negotiate, not to refuse; states champion mining and forestry and often *are* the proponent's ally; governments increasingly fast-track "priority" projects; and direct action can bring injunctions and arrests. So use the strong tools — the trigger, open standing, the courts, Aboriginal rights — but pair them with the movement, the market, and the media, be ready for a long fight, and count a quashed or conditioned approval, delay, and exposure as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a legal flaw. Not "the assessment is bad" but *"it ignored the cumulative impact on the aquifer and the threatened species the law requires it to protect — so the approval is unlawful."*

A trigger becomes a federal case. *"This significantly affects a matter of national environmental significance; it needed proper federal assessment it never got."*

Your standing becomes a threat. *"Under section 487 we can, and will, take this decision to the Federal Court."*

The harm becomes a public and market story. *"This mine drains the water our farms live on and clears the last habitat of this species — and the banks and insurers backing it should know."*

Match it to the venue: the assessment's flaws to the department; the illegality to the courts; the merits to the tribunal; the heritage threat to the minister under the ATSIHP Act; and the human and environmental story to the press, the public, and the financiers.

STEP 5: MEDIA STRATEGY

In Australia, publicity is power — the Franklin was won in the national imagination. A free press, an engaged public, and a strong movement mean the media front is central, and it protects campaigners too. And a distinctively Australian tactic sits alongside it: **the market**. Coverage that reaches a project's banks, insurers, and customers can strand it — the Stop Adani campaign turned financier and insurer pressure into a national weapon.

Lead with people and place, not procedure. Not "the assessment was procedurally deficient" but "the river our families have always known, the water our farms live on, the country Traditional Owners have cared for over millennia — all of it for a mine we were never really asked about." Use your strongest material: dated photographs, the map of the project over the water and habitat, named voices, and any court win already banked.

Work several audiences at once. Local and national press build political pressure; the environmental movement amplifies; national broadcasters reach the wider public; and financial and international media reach the money. Make it easy: captioned photos, short accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — follow the lead of Traditional Owners on what's shared, and get legal advice before anything that could bring an anti-protest charge.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — FOI request for the assessment and approvals (to the state agency / federal department).

Subject: Freedom of Information request — [project] assessment and approvals.

"Under the Freedom of Information Act, we, residents of [place], request the environmental assessment, the approval and its conditions, and the correspondence relating to [project] at [location]. Please provide these within the statutory time, or state the ground for any exemption. [Contact.]"

8B — Comment on an EPBC referral (via the Public Portal).

Subject: Comment on referral [EPBC number] — [project].

"We submit that [project] is a controlled action requiring full assessment and approval, because it is likely to have a significant impact on [the threatened species / World Heritage values / Ramsar wetland / water resource]: [specifics and evidence]. We ask that it be assessed accordingly. [Name, address, contact.]"

8C — Objection in the state assessment.

Subject: Objection — [project], [assessment reference].

"We, residents of [place], object to the approval of [project]: [the assessment fails to address the cumulative impact on / the water drawdown / the heritage of] [specifics]. We ask that these be addressed and the approval refused or a proper assessment required. [Attach evidence.]"

8D — To the Environmental Defenders Office / a public-interest lawyer.

Subject: Request for legal help — [project] at [location].

"Our community faces [project], which threatens [a national trigger / our water / Aboriginal heritage]. We've gathered [the referral, the assessment, photographs, testimony] and believe there are grounds to challenge it, including under section 487. We ask for your advice and, if warranted, representation, and we're ready to work as partners. [Contact and evidence summary.]"

8E — Supporting a Traditional Owner heritage protection (in support, at their direction).

Subject: Support for the protection of [area] — [project].

"We write in support of the Traditional Owners of [area] and their concerns about [project]'s threat to [heritage/country]. We offer [documentation / logistical / public] support at their direction, and we urge that [the ATSIHP declaration be considered / the heritage be protected]. [Contact.]"

8F — To a financier or insurer.

Subject: Environmental and reputational risk in [project].

"We understand your institution may be [financing / insuring] [project] at [location], which [drains critical groundwater / destroys threatened-species habitat / faces Traditional Owner opposition] and is the subject of active legal and public challenge. We ask you to weigh this against your own environmental and climate commitments. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [river / water / country] from [project].

"For generations the people of [place] have lived from [the river / the land / the water] at [location]. Now [project], by [company], threatens to [drain / clear / destroy] it — and we were never truly asked. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our water / our country / this river]. Australians stopped the Franklin, and communities have gone gasfield-free right across the country. With the movement, the courts, the market, and — where it applies — Aboriginal rights behind us, we have a real chance. Please join us: sign, share what you know, and stand with us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and its footprint, and look for a national trigger.** Lay it over the nine national matters, protected areas, and Aboriginal heritage. A trigger opens the federal door — your strongest lever.
2. **Find the EPBC referral and its 10-day window — and diarise it.** This is the one clock you cannot miss; comment to push for full assessment (8B).
3. **Object in the state assessment, in writing (8C), and FOI the documents (8A).** Formal acts that build the record.
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most and cost nothing.
5. **Get help from the EDO fast (8D).** Free environmental-law advice, and section 487 means the courthouse door is open to you.
6. **Go public and find your movement (8G).** The national movement and press have stopped megaprojects before and will carry your story — and, where it fits, take the fight to the money (8F).

Even lean, those six use your rights, protect the deadlines, build the record, and start a coalition — the ground everything else builds on.

WHEN THE SYSTEM IS TILTED

Australia's field is, by world standards, favourable — but it has real tilts, and you should know them.

When a state wants the project built. The state is usually both the assessor and the project's champion, and it can fast-track "priority" projects past the normal process. Don't fold: look hard for a federal trigger to open the Commonwealth front, use the courts and open standing, keep the movement intact, and make the state's backing of a flawed project a political cost.

When there's no federal trigger. If the project is a purely state matter, the powerful EPBC lever may not open, and you fight on state ground — planning law, the state courts and tribunals, the movement, the market. Harder, but the market and public-opinion levers still bite.

When Aboriginal heritage law fails. Juukan Gorge showed that state consents can permit the destruction of irreplaceable sites. The federal ATSIHP declaration is the backstop, and public outrage is a real force — the Juukan disaster brought down executives and reshaped the debate.

When they fast-track or criminalise protest. Several states have passed tough anti-protest laws. Get legal advice, keep direct action lawful and disciplined, and remember the deeper lesson of the Franklin: the movement and the public mind are what ultimately move governments.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Australia is, by global standards, well-governed — but resource politics, donations, and lobbying can bend a decision, and where they do, you expose it.

How to spot it. Approvals against the evidence or the department's own advice; a process rushed or fast-tracked to suit a project; revolving doors between industry and government; political donations from the proponent; benefits flowing to the connected while the community carries the harm.

Who's supposed to guard against it. The **state and federal anti-corruption commissions** (ICACs and the National Anti-Corruption Commission) investigate misconduct and improper influence. The **auditors-general** dig into public money and dodgy deals. The **ombudsmen** take complaints of official failure. The **courts** can review an improper decision. And Australia's **investigative press** has repeatedly exposed captured approvals.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the public interest required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the anti-corruption commission and trusted journalists rather than making accusations you can't back (defamation risk is real). Pair the exposure with the legal challenge and the public campaign, so the impropriety and the pressure land together.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the trigger aims it; organising builds the muscle; the legal challenges press the courts; the market and media raise the cost and reach the money. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project and its footprint and any national trigger; find the EPBC referral window and the state assessment; FOI the documents; comment and object *in the windows*; photograph the baseline; get the EDO and, where relevant, work alongside Traditional Owners; build your core group.

In the thick of it (months–years): challenge a flawed approval by judicial or merits review; pursue the federal trigger and, where they apply, Aboriginal heritage and native-title processes; open the market and media fronts.

The long haul (years): carry the case through appeals; keep the movement, the market, and the public campaign alive; hold the line for an approval quashed, real conditions, delay, or an outright stop.

FINAL ASSESSMENT

Stopping a destructive project in Australia can absolutely be done — this is the country that blockaded a wild river and made a federal government kill a state's dam — and the same win is honest about the price: over a thousand arrests and a years-long campaign that only reached the courts because the movement got there first. Hold both. Australia's tools are real and, in parts, unusually strong: a federal law that can override a state where a national matter is at stake; open standing that puts the courthouse within reach; merits review in some states that lets a court remake the decision; Aboriginal rights that grow stronger every year; and a free press, a deep movement, and a market lever that can strand a project. And the constraints are real too: split jurisdiction, state governments that back their projects, a federal law weak on cumulative harm, fast-tracking, and anti-protest laws.

Here's the discipline that wins. Find the national trigger and the flaw in the assessment, and pry loose the records. Comment and object in the windows — the federal one is only ten days. Use open standing and the courts; support Traditional Owners where their rights are engaged; and take the fight to the banks, the insurers, and the public. Brace for a long fight, and count an approval quashed or conditioned, delay, and exposure as wins alongside a clean stop. That's what the Franklin campaigners did — a local movement

that became a national one, the courts, the ballot box, and bodies on the ground together — and they saved a wild river forever. So can you.